

LUJAN, et al v SANDHU, et al

23CV47054

DEFENDANTS' MOTION TO COMPEL PLAINTIFF LUJAN'S FURTHER RESPONSES TO DISCOVERY

This case involves economic damages allegedly sustained by Plaintiff Alfonso Lujan ("Lujan") against Suhail Ali Sandhu, Zulfiqar Sandhu, and Jasmine Sandhu ("Defendants") arising out of a motor vehicle accident. Now before the Court is a motion to compel further responses to Request for Production of Documents, Set Three (RPD Set Three) brought by Defendants against Lujan.

I. Relevant Procedural Background

Plaintiffs filed their complaint on November 9, 2023. (Declaration of Anna Niemann ("Niemann Decl.") ¶ 2.) The parties have engaged in discovery including written discovery, depositions, and premises inspection. (*Id.* ¶3.) On May 7, 2025, Lujan was served with RPD, Set Three which had a responsive due date of June 9, 2025. (*Id.* ¶ 3, Ex. A; ¶ 4.)

On June 3, 2025, by email messages the parties' attorneys agreed to a two-week extension for responses. (*Id.* ¶ 4, Ex. B.) On June 20, 2025, Defendants received unverified responses to RPD Set Three, which consisted of objections and substantive responses but no new responsive materials. (*Id.* ¶ 5, Ex. C.)

On July 2, 2025, Defendants' attorney met and conferred by mail and email with Lujan's counsel seeking production of verified responses and the requested business records. (*Id.* ¶ 6, Ex. D.) Defendants' counsel avers that Lujan's attorney did not respond. On the same day, however, Lujan's attorney moved to withdraw as Lujan's counsel. (*Id.* ¶ 7, Ex. E.) The Court granted the motion to withdraw on August 15, 2025. (*Id.* ¶ 8, Ex. F.) Lujan is now representing himself in this matter.

II. Legal Standard

On receipt of a response to a Request for Production of Documents, the demanding party may move for an order compelling further responses to the demand if the

demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (CCP § 2031.310(a).)

Motions to compel further responses to RPDs must set forth specific facts showing good cause justifying the discovery sought by the request. (CCP § 2031.310(b).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531; see also *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as “a fact-specific showing of relevance”].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

III. Discussion

Lujan objected broadly to every RPD on multiple grounds. Lujan provided one substantive response, which was to RPD No. 16 which sought: “Any and all DOCUMENTS consisting of purchase invoices for inventory acquired for and by YOUR BUSINESS from January 2021 to present.” (Niemann Decl. Ex. A.)

RPD 17 sought identifying information about Lujan’s employees, including their identity and payroll records. Lujan objected on the grounds that the request implicated privacy rights but also responded that despite a diligent search, no responsive records were found.

RPDs 18-21 sought information related to bank records, payments to subcontractors, check registers and sales tax information. Lujan objected to this assembly of requests on the grounds that the information sought was not relevant, that the terms “Documents” and “Your Business” were vague and undefined.

Defendants move to compel further responses simply on the grounds that the discovery was timely served upon Lujan and the responses were not verified. Defendants make no attempt to set forth specific facts showing good cause justifying the discovery sought by the request. (CCP § 2031.310(b).) Nor do

Defendants attempt to explain in any way “good cause” for access to potentially private financial records – particular those of non-party employees.

However, Lujan has not filed any opposition to the Motion and his responses were not all code-compliant because they did not state with “particularity any document, tangible thing, land or electronically stored information falling within the category of item in the demand to which objection is being made.” (Code Civ. Proc. § 2031.240(b)(1).) Nor were the responses verified (tantamount to no response).

Defendants’ Motion to Compel Further Responses is **GRANTED**. Lujan is ordered to provide code-compliant responses to RPD, Set Three, on or before November 14, 2025, which must comply with Code Civ. Proc. § 2031.240(b)(1) and must be verified, unless the responses only contain objections. (Code Civ. Proc. § 2031.250.) Lujan is not required to provide objection-free responses.

The Court has discretion to impose sanctions where a party unsuccessfully opposes a motion to compel. (Code Civ. Proc. § 2023.030(a).) Lujan did not file an opposition and given his pro se status the Court is not inclined to award sanctions. Based on the foregoing, the Request for Sanctions is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. Defendants to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

WELLS FARGO BANK, N.A. v MATA

24CF14901

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT/SUMMARY ADJUDICATION

This is an action by Wells Fargo Bank, N.A. ("Plaintiff") against Baylee M. Mata ("Defendant") for the collection of a credit card debt in the sum of \$18,026.22. In his Answer, Defendant denied the allegations in the Complaint and raised multiple affirmative defenses.

Now before the Court is Plaintiff's motion for summary judgment.

I. Legal Standard

Summary judgment is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

A plaintiff may move for summary judgment when the plaintiff contends there is no defense to the cause of action. (Code Civ. Proc., § 437c, subd. (a).) A plaintiff meets the burden of showing there is no defense by proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) A plaintiff moving for summary judgment is not required to disprove any defense asserted by the defendant in addition to proving each element of the plaintiff's own cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853.) If the plaintiff meets its burden, then the burden shifts to the defendant to show the existence of a triable issue of material fact. (*Ibid.*) The moving party bears the burden of persuasion that there is no triable issue of material fact and that she is entitled to adjudication as a matter of law. (*Id.* at 850.)

II. Legal Analysis

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.) "Where contract language is clear and explicit and